

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION

FOR ENGROSSED

SENATE BILL NO. 1250

By: Hamilton, Jett, Standridge,
Alvord, Bullard, Prieto,
Burns, McIntosh, Guthrie,
and Sacchieri of the Senate

and

Banning of the House

POLICY COMMITTEE RECOMMENDATION

An Act relating to schools; defining terms; requiring each school district and charter school to submit to the State Department of Education certain listing annually by certain date; allowing submission of certain attestation; prohibiting certain materials and content from being accessible to certain students; describing materials deemed harmful to minors; requiring review of new materials by district personnel; providing certain construction; providing process for reporting suspected violations; providing for contents of report; providing for investigation; providing for certain notification regarding investigation findings; allowing an appeal of investigation findings to the State Department of Education; providing for contents of appeal; requiring certain investigation and notification of investigation findings; allowing a school district or charter school to request certain hearing within certain time period; directing the State Board of Education to review certain information and vote on certain determination; authorizing certain designation of a school for certain noncompliance; authorizing the State Board of Education to report

1 certain responses, violations, and status of
2 noncompliant school districts or charter schools;
3 providing certain penalty for noncompliance;
4 directing removal of certain materials under
5 investigation; providing for promulgation of rules;
6 providing for codification; providing an effective
7 date; and declaring an emergency.

8 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

9 SECTION 1. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 11-203 of Title 70, unless there
11 is created a duplication in numbering, reads as follows:

12 A. As used in this section:

13 1. "Harmful to minors" has the same meaning as provided in
14 Section 1040.75 of Title 21 of the Oklahoma Statutes;

15 2. "Library" means a school library, media program, classroom
16 library, or any other collection of books or other materials, print
17 or digital, that are maintained by a school district or charter
18 school or its employees for use by students and that do not qualify
19 as textbooks approved by the State Textbook Committee pursuant to
20 Sections 16-101 through 16-124 of Title 70 of the Oklahoma Statutes;

21 3. "Nudity" has the same meaning as provided in Section 1040.75
22 of Title 21 of the Oklahoma Statutes;

23 4. "School library" means the library maintained by a school
24 district or charter school for use by students; and

1 5. "Sexually explicit content" means any communication,
2 language, or material including a written description, illustration,
3 photographic image, video image, or audio file that describes,
4 depicts, or portrays actual or simulated sexual intercourse, deviate
5 sexual intercourse, rape, sexual bestiality, masturbation, sado-
6 masochistic abuse, incest, molestation, necrophilia, or lewd
7 exhibition of the genitals, anus, or any portion of the female
8 breast below the top of the areola.

9 B. By October 1, 2026, and by every October 1 thereafter, each
10 school district and charter school shall submit to the State
11 Department of Education a complete listing of all books and other
12 materials available in its school library. To fulfill the
13 requirement of this subsection, a school district or charter school
14 superintendent may submit an attestation that the public online
15 school library catalog or catalogs contain a complete and accurate
16 list of books and other materials accompanied by the website for
17 accessing the relevant catalog or catalogs.

18 C. 1. A library in a school district or charter school shall
19 be prohibited from having any materials available for checkout by
20 students which would be deemed harmful to minors. Materials to be
21 considered harmful to students include, but are not limited to,
22 those which contain pornographic material, depictions or
23 descriptions of nudity intended to cause sexual excitement,
24 depictions of sexual conduct or depictions which as a whole are

1 intended to cause sexual excitement, sadomasochistic abuse, or
2 sexualized content, as defined in this section.

3 2. New materials to be added to a school library shall be
4 reviewed by district personnel as designated by the school district
5 or charter school superintendent for materials harmful to minors due
6 to pornographic material, depictions or descriptions of nudity
7 intended to cause sexual excitement, depictions of sexual conduct or
8 depictions which as a whole are intended to cause sexual excitement,
9 sadomasochistic abuse, or sexualized content, as defined in this
10 section, considering the youngest age of students with access to the
11 material.

12 D. Nothing in this section shall prohibit a student from
13 reading, owning, possessing, or discussing any book obtained without
14 the assistance or encouragement of a school district or charter
15 school, its employees, or its libraries; provided, however, nothing
16 in this section shall be construed to allow a student to bring
17 materials containing or depicting sexually explicit content, nudity,
18 or material that is harmful to minors on the grounds of a school
19 district or charter school.

20 E. 1. The parent or legal guardian of a student enrolled in a
21 school district or charter school may report suspected violations of
22 the provisions of this section to the school district board of
23 education or the charter school governing body. The report shall
24 include a written complaint summarizing the alleged violation

1 including the time, date, and location of the alleged violation and
2 the identity of any person involved.

3 2. Within fourteen (14) business days of receiving a report
4 pursuant to this subsection, the school district board of education
5 or charter school governing body shall conduct an investigation to
6 determine whether a violation occurred. The school district board
7 of education or charter school governing body shall notify the
8 parent or legal guardian who submitted the report of the findings of
9 the investigation.

10 3. A parent or legal guardian who submits a report pursuant to
11 this subsection may appeal the findings of the school district board
12 of education or charter school governing body to the State
13 Department of Education. The appeal shall include a copy of the
14 report submitted to the school district board of education or
15 charter school governing body pursuant to paragraph 1 of this
16 subsection and the investigation findings reported pursuant to
17 paragraph 2 of this subsection. The State Department of Education
18 shall conduct an investigation to determine whether a violation
19 occurred. The Department shall notify the parent or legal guardian
20 who submitted the report and the school district or charter school
21 of the findings of the investigation.

22 4. If the Department determines a violation occurred, the
23 school district or charter school shall have fourteen (14) business
24 days to request a hearing before the State Board of Education. The

1 Board shall review the alleged violation, the findings of the
2 investigation by the Department, and the response from the school
3 district or charter school and vote on whether to uphold the
4 determination of the Department.

5 5. If the State Board of Education votes to uphold the
6 determination of the State Department of Education, the Board is
7 authorized to report a school district or charter school on the
8 accreditation report for noncompliance with the provisions of this
9 section. The State Board of Education may report as follows:

- 10 a. the State Board of Education shall consider the
11 response from the school district or charter school
12 following the Board upholding of the determination of
13 the State Department of Education, and in determining
14 appropriate accreditation reporting, if necessary,
- 15 b. under existing administration, to include the
16 superintendent and personnel responsible for
17 maintaining the school district library program, a
18 probation status for noncompliance for the first
19 violation upheld by the State Department of Education
20 and State Board of Education,
- 21 c. under existing administration, to include the
22 superintendent and personnel responsible for
23 maintaining the school district library program, a
24 warning status for noncompliance for the second

violation upheld by the State Department of Education
and State Board of Education,

d. under existing administration, to include the
superintendent and personnel responsible for
maintaining the school district library program, a
deficiency status for noncompliance for the third or
subsequent violations upheld by the State Department
of Education and State Board of Education,

e. a deficiency status for noncompliance for any
violation in which administration or school library
personnel knowingly violated subsections B or C of
this section,

f. upon a deficiency status of noncompliance under
subparagraph c or d of this paragraph by the State
Board of Education, the noncompliant school district
or charter school shall be required to submit a
complete listing of all books and other materials
available in its school library on a quarterly basis
for a period of time to be established pursuant to the
facts by the State Board of Education, not to exceed
two academic school years, and

g. any school district or charter school with a
deficiency status of noncompliance under this
paragraph for two of three academic school years, or

1 two consecutive academic school years, may receive a
2 five percent (5%) reduction in state funding for the
3 fiscal year following the most recent fiscal year of
4 noncompliance upon a vote of the State Board of
5 Education.

6 6. During such time that a violation has been reported and is
7 being investigated, the material under investigation shall be
8 removed from the library of the public school or public charter
9 school for general circulation and unavailable for student access
10 until such time when the investigation reaches a final
11 determination.

12 F. The State Board of Education shall promulgate rules to
13 implement the provisions of this section.

14 SECTION 2. This act shall become effective July 1, 2026.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health, or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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